

TAB 5



Board of Education Report

File #: Rep-060-23/24, **Version:** 1

Approval of Facilities Contracts Actions

January 23, 2024

Procurement Services Division - Facilities Contracts

Action Proposed:

Ratify the Procurement Services Division (PSD) contract actions taken by Facilities Contracts under delegated authority as listed in Attachment “A” including: award of advertised construction contracts; award of job order contract amendments; approval of change orders; completion of contracts; award of informal contracts; award of architectural and engineering contracts; award of professional/technical services amendment; extra services/amendments for architectural and engineering contracts and approve the proposed contracts listed in Attachment B including public safety radio system services contract capacity increase amendment, roofing and waterproofing repair and maintenance services task order contracts and asbestos abatement and lead remediation services task order contracts.

Background:

Facilities Contracts staff prepares monthly reports for contract actions necessary for the execution of projects approved by the Board and contained in the FSD Strategic Execution Plan (SEP), and for the maintenance and operation of District facilities in accordance with District policies and Board-delegated authority. As described in the November 12, 2013, Board Report #048-13/14 Informative, detailed information is provided on the Facilities Services website.

Expected Outcomes:

Approval of these items will allow services provided by these contracts to proceed in support of FSD projects, District policies and goals, and the Board-approved FSD-SEP.

Board Options and Consequences:

The Board can approve all actions presented or postpone selected actions pending receipt of additional information. Non-ratification of actions awarded under delegated authority in Attachment “A” will result in the immediate discontinuance of services. While non-ratification may be legally defensible, it will likely result in costly litigation over discontinued payments or if the District attempts to reclaim payments made to a vendor. District costs will likely increase as fewer contractors compete for future procurements.

Policy Implications:

This action does not change District policy and conforms to California Education Code section 17604 that permits the Board of Education to delegate authority for Facilities Contracts (Board Report #444-17/18), which the Board exercised on May 08, 2018.

Budget Impact:

The contract actions presented are within the budget authority previously approved by the Board. Unless indicated otherwise, all contract actions are Bond funded.

Student Impact:

The contract actions will help ensure that the students are provided with safe and healthy environments, and up to-date facilities that promote learning.

Equity Impact:

Not Applicable.

Issues and Analysis:

There are no policy implications on these agreements.

Attachments:

Attachment "A" - Ratification of Facilities Contracts Actions Awarded Under Delegated Authority

Attachment "B" - Approval of Facilities Contracts Actions Not Under Delegated Authority

Linked Materials

Previously adopted Board report(s) referenced:

- In the background [Board Report No. 048-13/14 <https://drive.google.com/file/d/1q-FUsW7AXKe8h0A4KY-J3OVby30HueD6/view>](https://drive.google.com/file/d/1q-FUsW7AXKe8h0A4KY-J3OVby30HueD6/view), dated November 12, 2013, Informative
- In the policy implications [Board Report No. 444-17/18 <https://drive.google.com/file/d/16sRw7yPe-tScbr2wG8AMTWB9QSeiQazM/view>](https://drive.google.com/file/d/16sRw7yPe-tScbr2wG8AMTWB9QSeiQazM/view), dated May 8, 2018.

Informatives:

Not Applicable.

Submitted:

12/12/23

RESPECTFULLY SUBMITTED,



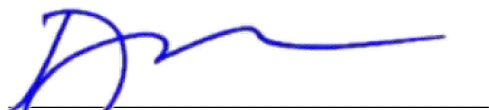
ALBERTO M. CARVALHO
Superintendent

APPROVED BY:



PEDRO SALCIDO
Deputy Superintendent,
Business Services & Operations

REVIEWED BY:



DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED:



SUNG YON LEE
Deputy Chief Business Officer
Business Services and Operations

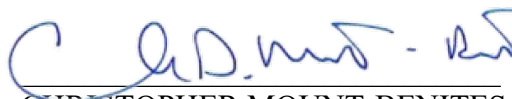
REVIEWED BY:



NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

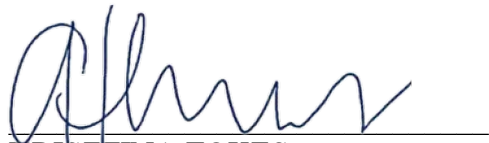
☒ Approved as to budget impact statement

APPROVED & PRESENTED BY:



CHRISTOPHER MOUNT-BENITES
Chief Procurement Officer
Procurement Services Division

REVIEWED BY:



KRISZTINA TOKES
Chief Facilities Executive

☒ Approved as to facilities impact

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item A

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Pacific Single Ply Roofing, Inc. (SBE)	2410009 / 4400012407	<u>Richland Avenue ES</u> Roofing Board Member: <u>Nick Melvoin</u>	<i>Bond Funds</i> (100%)	\$1,298,519

Ratification of formally competed contract selected from three (3) bids received to provide new roofing as authorized on September 14, 2021 ([Board Report No. 036-21/22](#)).

The project will provide approximately 47,430 square feet of new roofing sitewide, including installation of new gutters and downspouts. Pillar 4 is supported by this action.

The contractor is new to the District.

Contract Term: 12/06/23 through completion

Contract Value: \$1,298,519

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item B

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Beta Investments and Contracts, Inc. (SBE)	2410010 / 4400012278	<u>Curtiss MS</u> Ceiling System Improvements Board Member: <u>Tanya Ortiz Franklin</u>	<i>Bond Funds</i> (100%)	\$1,780,800

Ratification of formally competed contract selected from two (2) bids received to provide ceiling system improvements as authorized on May 13, 2014 ([Board Report No. 393-13/14](#)).

The project will provide seismic upgrades by installing additional structural support (seismic bracing) and wire support. The project will address approximately 77,850 square feet of a suspended ceiling system to improve structural integrity. This project includes replacement of deteriorated ceiling tiles asbestos abatement, and removal of impacted components beyond their remaining service life. Pillar 4 is supported by this action.

The contractor has worked with the District since 1994. Project was awarded to lowest responsive responsible bidder.

Contract Term: 12/01/23 through completion

Contract Value: \$1,780,800

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item C

<u>CONTRACTOR</u>	<u>IDENTIFICATION</u> <u>NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE</u> <u>OF</u> <u>FUNDS</u>	<u>AMOUNT</u>
Best Contracting Services, Inc.	2410011 / 4400012299	<u>South Gate MS</u> Roofing Board Member: <u>Jackie Goldberg</u>	<i>Bond Funds</i> (100%)	\$4,367,666

Ratification of formally competed contract selected from four (4) bids received to provide roofing as authorized on April 23, 2019 ([Board Report No. 323-18/19](#)).

The project will provide approximately 119,590 square feet of new roofing including new gutters, downspouts, installation of skylights and painting of affected areas. Pillar 4 is supported by this action.

The contractor has worked with the District since 1990.

Contract Term: 11/13/23 through completion

Contract Value: \$4,367,666

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item D

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Reliable Floor Covering, Inc. (SBE)	2410022 / 4400012394	<u>Fairfax HS</u> Flooring Replacement Board Member: <u>Nick Melvoin</u>	<i>Bond Funds (100%)</i>	\$2,993,500

Ratification of formally competed contract selected from three (3) bids received to provide flooring replacement as authorized on April 23, 2019 ([Board Report No. 323-18/19](#)).

The project will replace approximately 117,530 square feet of deteriorated flooring sitewide. Pillar 4 is supported by this action.

The contractor has worked with the District since 1998.

Contract Term: 12/01/23 through completion

Contract Value: \$2,993,500

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item E

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Thomasville Construction, Inc. (SBE)	2230005 / 4400010335 (2230005.04)	Districtwide Job Order Contract Amendment	<i>Bond Funds (100%)</i>	\$500,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide general contracting services Districtwide.

The contractor has worked with the District since 2015. These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract term including this amendment: 03/08/22 through 03/06/24. One (1) one-year option remaining.

Initial Contract Value:	\$ 500,000
Amendment No. 1	\$1,500,000
Amendment No. 2	\$0
	Terms Revised
	Option Year 1
Amendment No. 3	\$ 250,000
*Amendment No. 4	\$ 500,000
<i>(Executed Date: 11/16/23)</i>	

Aggregate Contract Value: \$2,750,000

Requester:

Greg Garcia, Director
Project Execution
Facilities Services Division

* *Current Ratification*

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item F

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Geronimo Concrete, Inc. (SBE)	2330006 / 4400011622 (2330006.01)	Districtwide Job Order Contract Amendment	<i>Bond Funds (100%)</i>	\$650,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide general contracting services Districtwide.

The contractor has worked with the District since 2005. These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract term including this amendment: 06/09/23 through 06/07/24.

Initial Contract Value: \$ 350,000

*Amendment No. 1 \$ 650,000

(Executed Date: 11/01/23)

Aggregate Contract Value: \$1,000,000

Requester:

Greg Garcia, Director
Project Execution
Facilities Services Division

* *Current Ratification*

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

Item G

B. APPROVAL OF CHANGE ORDERS

November 2023 = \$6,113,684

		<u>QUANTITY</u>	<u>AMOUNT</u>
	i. New Construction contract change orders that do not individually exceed 10 percent for November 2023 (Average Transaction: \$39,561; Median Transaction: \$9,762)	51	\$2,017,608
	ii. New Construction contract credit change orders for November 2023:	1	<\$49,386>
	iii. Existing Facilities contract change orders that do not individually exceed 15 percent for November 2023 (Average Transaction: \$14,446; Median Transaction: \$6,036):	307	\$4,435,061
	iv. Existing Facilities contract credit change orders for November 2023:	14	<\$289,599>
	v. Existing Facilities contract change orders that individually exceed 15 percent (but do not exceed 25 percent) for November 2023, requiring 75 percent approval by the Board:	0	\$0

C.	COMPLETION OF CONTRACTS – November 2023	13	\$4,972,779
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D.	AWARD OF INFORMAL CONTRACTS (Not Exceeding \$109,300)		
	A & B Letters for November 2023 (Average Transaction: \$51,514; Median Transaction: \$50,394)	28	\$1,442,401

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ARCHITECTURAL AND ENGINEERING CONTRACTS

Item H

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Lehrer Architects LA, Inc. (SBE)	2420007/ 4400011108	<u>Dymally HS</u> Football Stadium Upgrade Project Board Member: <u>Tanya Ortiz Franklin</u>	<i>Bond Funds (100%)</i>	\$620,741

Ratification of design contract to provide architectural and engineering services procured via RFQ R-19012.

Architectural and engineering services for site investigation/preliminary planning, construction document, bid/proposal and award, and construction and closeout for the Dymally High School football stadium upgrade project as authorized on June 20, 2023 ([Board Report No. 127-22/23](#)).

The project includes, but is not limited to design and construction of two new permanent buildings located at the existing football stadium to provide home and visitor restrooms, concessions, ticket booths, and custodial/mechanical support spaces, new shot put area, fencing, and gates, and other associated upgrades, including landscape, hardscape, and infrastructure; demolition and removal of the existing shot put area; improvements to ensure compliance with local, state, and federal requirements including ADA, DSA, CEQA and DTSC.

Pillar 4 is supported by this action. These services provide operational effectiveness and modernize infrastructure.

Contract Term: 11/15/23 through closeout

Contract Value: \$620,741

Requester:

Aaron Bridgewater, Director
Asset Management
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ARCHITECTURAL AND ENGINEERING CONTRACTS

Item I

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
CO Architects	2420014/ 4400012141	<u>Fairfax HS</u> Major Modernization Project Board Member: <u>Nick Melvoin</u>	<i>Bond Funds (100%)</i>	\$432,645

Ratification of design contract to provide architectural and engineering services procured via RFQ R-13019.

Architectural and engineering services for site analysis phase and project criteria development phase in support of the design-build process for a major modernization project as authorized on June 13, 2023 ([Board Report No. 281-22/23](#)). The project includes but is not limited to construction of approximately five specialty classrooms and support spaces, new gymnasium, and new maintenance and operations building; demolition of the existing gymnasium, shop building, and maintenance and operations building; exterior painting of all remaining buildings to provide a uniform appearance; associated landscape, hardscape, parking improvements, and infrastructure upgrades including, but not limited to, sanitary sewer, water, storm water, and electrical utilities.

Pillar 4 is supported by this action. These services provide operational effectiveness and modernize infrastructure.

Contract Term: 09/27/23 through closeout

Contract Value: \$432,645

Requester:

Aaron Bridgewater, Director
Asset Management
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ARCHITECTURAL AND ENGINEERING CONTRACTS

Item J

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Perkins Eastman Architects, DPC	2420020/ 4400012224	<u>Girls Academic Leadership Academy, Dr. Michelle King School for STEM</u> Campus Reconfiguration and Upgrade Project Board Member: <u>Dr. George J. McKenna III</u>	<i>Bond Funds (100%)</i>	\$652,941

Ratification of design contract to provide architectural and engineering services procured via RFQ R-13019.

Architectural and engineering services for site investigation/preliminary planning, construction document, bid/proposal and award, construction administration and closeout for campus reconfiguration and upgrade project as authorized on September 12, 2023 ([Board Report No. 037-23/24](#)). The project includes but is not limited to: deliver and permanently install approximately nine (9) classrooms, support spaces, and restrooms in relocatable buildings; demolition and removal of three (3) existing non-DSA certified relocatable classroom buildings; minor interior improvements at existing classrooms; installation of lockers to accommodate GALA students; associated landscape, hardscape, parking adjustments, security improvements, and infrastructure upgrades including, but not limited to, sanitary sewer, water, storm water, and electrical utilities; requirements from the Americans with Disabilities Act (ADA), Division of the State Architect (DSA), California Environmental Quality Act (CEQA), Department of Toxic Substances Control (DTSC), or other improvements to ensure compliance with local, state, and federal requirements.

Pillar 4 is supported by this action. These services provide operational effectiveness and modernize infrastructure.

Contract Term: 10/30/23 through closeout

Contract Value: \$652,941

Requester:

Aaron Bridgewater, Director
Asset Management
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF PROFESSIONAL/TECHNICAL SERVICES AMENDMENTS

Item K

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>NOT-TO- EXCEED AMOUNT</u>
Chicago Title Company	1990006 / 4400007202	<u>Districtwide</u> Real Estate Title and Escrow Services	<i>Bond Funds (90%) General Funds (10%)</i>	\$40,000*

Ratification of amendment to increase contract capacity to provide real estate title and escrow services for on-going site evaluations and acquisition services selected via RFP R-19007 and approved April 23, 2019 ([Board Report No. 294-18/19](#)). The authority to increase or decrease individual amount for this formally competed contract will be limited to the total aggregate amount of \$250,000.00. The amount awarded will be based upon the needs of the Program.

Pillar 4 is supported by this action. These services provide operational effectiveness and modernize infrastructure.

Contract term including this amendment: 03/01/19 through 02/29/24, includes four (4) one-year renewal options

Original Contract Value: \$210,000

*Additional Requested Value \$ 40,000

Aggregate Contract Value: \$250,000

Requester:

Aaron Bridgewater, Director

Asset Management

Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

**EXTRA SERVICES / AMENDMENTS FOR ARCHITECTURAL AND
ENGINEERING CONTRACTS****\$172,300****Item L**

CONTRACT NOS.	1620147/4400004891; 1620149/4400004866; 1720046/4400005910; 1820007/4400006097; 1820028/4400006234; 1820028/4400006234; 1820028/4400006234; 1820028/4400006234; 1820031/4400006280; 1920003/4400006934; 2020005/4400007945; 2120137/4400009424
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Extra services are for design work that is not covered under the original Agreement. October Extra Services are listed at the link provided.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

[BOE 060 Extra Services](#)

ATTACHMENT B
APPROVAL OF CONTRACTS NOT UNDER DELEGATED AUTHORITY

A. AUTHORIZATION TO AWARD A GOODS & GENERAL SERVICES CONTRACT AMENDMENT **\$3,000,000**

Item M

<u>CONTRACTOR</u>	<u>IDENTIFICATION</u> <u>NO.</u>	<u>SOURCE OF</u> <u>FUNDS</u>	<u>AMOUNT</u>
Motorola Solutions, Inc.	2290014.01 / 4400010081	<i>Bond</i> <i>Funds</i> (100%)	\$3,000,000*

Authorization to increase contract capacity of a formally competed contract to provide public safety radio system including infrastructure equipment, software, and support services.

Pillar 4 is supported by this action.

Contract term including this amendment: 03/31/22 through 02/28/27

Original Value: \$20,601,700

*Additional Requested Value: \$ 3,000,000

NOT-TO-EXCEED AGGREGATE AMOUNT

\$23,601,700* (100% Bond Funds)

Requester:

Soheil Katal, Chief Information Officer
Information Technology Services

ATTACHMENT B
APPROVAL OF CONTRACTS NOT UNDER DELEGATED AUTHORITY

B. APPROVAL OF TECHNICAL SERVICES TASK ORDER CONTRACTS **\$6,000,000**
(PCC 20118.5-.9)

Item N

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>
Best Contracting Services, Inc.	2480028/4400012400
Danny Letner, Inc. (SBE)	2480029/4400012401

Authorization to award two (2) formally competed task order contracts to provide roofing and waterproofing repair and maintenance services Districtwide procured via IFB R-24014. The authority to increase or decrease individual amounts for these contracts will be limited to \$3,000,000 each. Pillar 4 is supported by this action.

Contract Term: 02/01/24 through 01/31/27 plus two (2) one-year renewal options

NOT-TO-EXCEED AGGREGATE AMOUNT
\$6,000,000* (100% Restricted Maintenance Funds)

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

ATTACHMENT B
APPROVAL OF CONTRACTS NOT UNDER DELEGATED AUTHORITY

C. APPROVAL OF TECHNICAL SERVICES TASK ORDER CONTRACTS **\$15,000,000**
(PCC 20118.5-.9)

Item O

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>
Asbestos Instant Response, Inc. (SBE)	2480033/4400012372
ATI Restoration, LLC	2480034/4400012373
Eagle Contracting, Inc. (SBE)	2480035/4400012374
Karcher Environmental, Inc. (SBE)	2480036/4400012375
Tri Span, Inc. (SBE)	2480037/4400012376

Authorization to award five (5) formally competed task order contracts to provide asbestos abatement and lead remediation services Districtwide procured via IFB R-24001. The authority to increase or decrease individual amounts for these contracts will be limited to \$3,000,000 each. Pillar 4 is supported by this action.

Contract Term: 02/01/24 through 01/31/27, plus two (2) one-year renewal options

NOT-TO-EXCEED AGGREGATE AMOUNT
\$15,000,000* (100% Restricted Maintenance Funds)

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division